

February 26, 2013



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 15756
(FIRST REVISION)

EXPIRATION DATE: May 31, 2013

1. GRANTEE: The Environmental Protection Agency (EPA) Region II and persons conducting operations under the direction of EPA within the Hurricane Sandy disaster areas of NY and NJ
2. PURPOSE AND LIMITATION: This emergency special permit authorizes the transportation in commerce of certain hazardous materials in support of the recovery and relief efforts within the Hurricane Sandy disaster areas of New York and New Jersey under conditions that may not meet the Hazardous Materials Regulations. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Parts 171-180 in that compliance with the HMR is required to the extent practical.
5. BASIS: This emergency special permit is based on the application of United States Environmental Protection Agency Region II dated November 7, 2012, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property by facilitating expedited transportation of hazardous materials within the disaster area and additional information dated February 13, 2013.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Hazardous Materials listed in the HMR other than radioactive materials	Class 1, 2, 3, 4, 5, 6, 8, 9	As Applicable	As Applicable

7. SAFETY CONTROL MEASURES:

a. Compliance with the HMR is required to the extent practicable. When compliance with the HMR is not possible or practicable, shipments may be offered or transported under alternative safety requirements imposed by the grantee.

b. The hazardous materials identified in paragraph 6. above may be transported to a staging area within 50 miles of the point of origin. Further transportation of the hazardous materials from the staging area must in full compliance with the HMR.

8. SPECIAL PROVISIONS: Operations under this special permit are limited to the EPA Region II or those operating under the direction of the EPA Region II.9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle10. MODAL REQUIREMENTS:

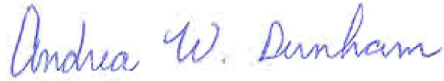
a. A current copy of this special permit must be carried aboard each motor vehicle used to transport hazardous materials covered by this special permit.

b. The shipper must provide written notification to the carrier of the hazardous material and packagings being offered, at the time the shipment is initiated.

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c. Bulk transportation of hazardous materials by rail freight is not authorized under this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: LAVALLE